



RETAILERS ASSOCIATION OF SEYCHELLES

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MINUTES OF MEETING BETWEEN THE RETAILERS ASSOCIATION OF SEYCHELLES (RAS) AND THE FAIR TRADING COMMISSION (FTC)

Date: 1 June 2026

Time: 10:00 AM – 11:30 AM

Venue: Fair Trading Commission (FTC)

Attendance

Fair Trading Commission (FTC)

- Mr. Jean-Philip Esparon – Head of the Competition Department
- Ms. Sheena Leste – Competition Analyst

Retailers Association of Seychelles (RAS)

- Mr. Duraisamy Muthukumaran – Chairman
- Mr. Rajpradeep Pillay – Vice Chairman
- Mr. Balakumaran – Secretary
- Mr. Sekaar Kumar – Treasurer
- Mr. Manikandan – Assistant Treasurer
- Mrs. Divya A. S. – Committee Member
- Mr. Khalyaan Karunakaran – Legal Adviser

Agenda

1. Introduction of the Newly Elected RAS Executive Committee to FTC Representatives
2. Recommended Retail Price (RRP) – Clarification
3. Update on the STC Tied/Bundled Sales Complaint
4. Clarification on SIBA-Related Matters

Agenda Item 1: Introduction of the Newly Elected RAS Executive Committee

Discussion

The Chairman introduced the newly elected Executive Committee of the Retailers Association of Seychelles (RAS) following the Association's Annual General Meeting.

Committee members present introduced themselves to the FTC representatives and outlined their respective roles within the Association.

Agenda Item 2: Recommended Retail Price (RRP) – Clarification

Discussion

- RAS thanked FTC for issuing its clarification press release regarding Recommended Resale Prices (RRP) and welcomed the clarification that RRP is only a recommended price and

that retailers remain free to independently determine their own selling prices.

- RAS acknowledged FTC's efforts in addressing concerns previously raised by retailers regarding RRP and the confusion experienced by consumers. RAS highlighted ongoing customer confusion arising from differences between retailers' selling prices and the RRP displayed on products.
- The Committee noted that consumers often assume that the RRP displayed on a product is the actual selling price, resulting in complaints, disputes, and operational difficulties for retailers.
- FTC representatives informed the Committee that they had received information regarding price adjustments on certain Seychelles Breweries products. FTC acknowledged that retailers are becoming increasingly aware of their rights and responsibilities under the law and recognised the efforts being made by

retailers to understand, exercise, and safeguard those rights in a lawful and responsible manner.

FTC clarified that:

- RRP is only a recommendation and not the final selling price.
- Retailers have the legal right to independently determine their own selling prices.
- The purpose of RRP is to provide pricing information to consumers and facilitate price comparison.
- The existence of an RRP does not oblige retailers to sell at that price.
- FTC clarified that supplier-applied RRP markings displayed on products must not be removed, altered, covered, or modified. Retailers may display their own selling prices using shelf labels, price tags, stickers, or other pricing methods, provided the retailer's

actual selling price is clearly displayed and corresponds with the price charged at the Point of Sale (POS).

- RAS sought clarification on whether displaying a retailer's selling price alongside an RRP displayed on a product would constitute dual pricing.
- FTC clarified that this would not constitute dual pricing, provided the retailer's actual selling price is clearly displayed, corresponds with the price charged at the Point of Sale (POS), and the supplier-applied RRP remains unaltered.
- FTC confirmed that the presence of both the supplier's RRP and the retailer's actual selling price does not amount to dual pricing and cannot, by itself, form the basis of a complaint where the retailer's selling price is clearly displayed and correctly charged.

- RAS proposed that recommended prices be communicated through invoices or trade documents rather than being displayed directly on products.
- FTC advised that any amendment to the existing RRP framework would require a formal legal and regulatory review process and consideration by senior officials.
- RAS requested FTC to review the current practice of displaying RRP on products and consider possible amendments as part of a longer-term review process.
- FTC advised that the concerns and suggestions raised by RAS would be conveyed to senior officials for further consideration.
- RAS proposed that FTC develop consumer awareness materials explaining the purpose of RRP and retailers' right to independently determine their own selling prices.

- FTC welcomed the suggestion and advised that it would consider developing appropriate awareness materials.
- FTC reiterated that RRP may only be displayed on the product itself and must not be displayed on promotional materials, posters, shelf displays, stickers affixed to chillers, or other promotional equipment.
- FTC confirmed that manufacturers, distributors, and wholesalers have until 24 August 2026 to achieve full compliance with these requirements.

Key Clarifications from FTC

- RRP is a recommended price and not a mandatory selling price.
- Retailers remain free to independently determine their own selling prices.
- RRP may be displayed only on the product itself.

- RRP must not be displayed on posters, shelf displays, promotional materials, chillers, or similar equipment.
- Retailers may display their own selling prices using their own labels and pricing systems.
- Displaying a retailer's selling price alongside an RRP does not constitute dual pricing.
- Supplier-applied RRP markings displayed on products must not be altered, removed, covered, or modified.
- Retailers may display their own selling prices separately using shelf labels, price tags, stickers, or other pricing methods, provided the retailer's actual selling price is clearly displayed and corresponds with the price charged at the Point of Sale (POS).
- Any amendment to the current RRP framework would require a formal legal and regulatory process.

Action Points

1. FTC to raise the concerns and suggestions submitted by RAS regarding RRP with senior officials.
2. FTC to consider the proposal regarding invoice-based recommended pricing.
3. FTC to consider reviewing the current approach to displaying RRP on products.
4. FTC to consider developing consumer awareness materials on RRP and retail pricing.
5. FTC to continue enforcement of the 24 August 2026 compliance deadline for promotional materials displaying RRP.

Agenda Item 3: Update on the STC Tied/Bundled Sales Complaint

Discussion

- RAS requested an update on the complaint concerning alleged tied or bundled sales by the Seychelles Trading Company (STC).

- FTC advised that the investigation remains ongoing and that a formal update will be provided upon completion.
- FTC reported that STC stated the practice has been discontinued and was introduced due to inventory management and stock availability issues.
- RAS reiterated its position that retailers should not be compelled to purchase unwanted products in order to access products that are in demand.
- The RAS Chairman informed FTC that RAS is not seeking compensation, penalties, or enforcement action against STC, recognising that STC is a government-owned entity and that the practice has reportedly been discontinued. However, RAS requested that retailers who purchased excess soya bean oil under such arrangements be allowed to return any unsold stock.

- FTC took note of the request and advised that the matter would be considered as part of its ongoing discussions and review.
- FTC informed the meeting that it had also engaged with IFS regarding similar allegations. According to FTC, IFS stated that any such practices were carried out by individual sales representatives without management approval and that disciplinary action would be taken where necessary.
- RAS informed FTC that retailers had collectively opposed such practices and taken a united stand against any attempt to force purchases of unwanted products.
- FTC commended retailers for opposing such practices and encouraged continued reporting of suspected unfair trading practices.
- FTC clarified that complaints may be submitted even where arrangements were verbal and unsupported by written evidence.
- FTC advised that formal statements, invoices, witness accounts, and other supporting

evidence may all be considered during investigations.

- FTC further advised that retailers should immediately report any suspected tied sales, bundled sales, coercive selling practices, or other unfair trading practices to facilitate prompt investigation and enforcement action.

Action Points

1. FTC to continue its investigation into the STC complaint.
2. FTC to continue investigations into allegations involving IFS sales practices.
3. FTC to consider the request regarding the return of unsold soya bean oil purchased under the tied sales arrangement.
4. Retailers to report any suspected tied or bundled sales practices to FTC.
5. Retailers to collect and submit supporting evidence where available.
6. RAS to encourage members to submit statements where unfair practices are suspected.

Agenda Item 4: Clarification on SIBA-Related Matters

Discussion

- RAS sought clarification regarding concerns about wholesalers engaging in retail sales and whether appropriate licences are held.
- FTC advised that it would liaise with the Seychelles Licensing Authority (SLA) to clarify licensing requirements and address concerns raised by RAS.
- The Committee emphasised the importance of maintaining a level playing field and ensuring businesses operate within the scope of their licences.

Action Points

1. FTC to seek clarification from SLA regarding licensing requirements applicable to wholesalers engaging in retail activities.
2. RAS to meet with SLA officials once a meeting date is confirmed.
3. Further updates to be provided to members following clarification from SLA.

In Conclusion both FTC and RAS reaffirmed their commitment to continued dialogue, cooperation, consumer education, and the promotion of fair competition within the retail sector. RAS thanked FTC representatives for the constructive engagement and confirmed its commitment to working collaboratively with regulators and stakeholders to address issues affecting retailers and consumers.

Meeting Adjourned : 11:30 AM

Prepared by: Balakumaran
Secretary



Retailers Association of Seychelles (RAS)

Date: 02.06.2026

Approved by:

Duraisamy Muthukumaran
Chairman



Retailers Association of Seychelles (RAS)

Date: 02.06.2026

Approved by:

Mr. Jean-Philip Esparon



Head of Competition Department

The Seychelles Fair Trading Commission

Date: 10.06.2026